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Provision of November 13, 2024
Register of provisions
n. 671 of November 13, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018, n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING SEEN the documentation in the records;
HAVING SEEN the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's regulation n. 1/2000, adopted by resolution of June
28, 2000;

REPORTING Prof. Pasquale Stanzione;

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

1.1. Premise

With communication Prot. n. 67283 of June 3, 2024
(notified on the same date via certified electronic mail), which must be understood as fully referenced
here, the Office initiated, pursuant to Article
166, paragraph 5, of the Code, a procedure for
the adoption of the measures referred to in Article 58, paragraph
2, of the Regulation against Thermogen S.r.l.
(hereinafter "Thermogen" or "Company"), VAT
09968640962, represented by the legal representative
pro tempore, with registered office in Milan (MI), Viale
Abruzzi n. 94.

The procedure originated from an investigation
initiated by the Authority, following the transmission
of a complaint in which the complainant
reported having received an unwanted call
for promotional purposes aimed at
concluding a boiler maintenance contract,
made in the name and on behalf of Thermogen.

In the referenced complaint, the complainant
stated that he had never had any relationship with
the Company, had never provided the Company with

his personal data, nor given consent for the processing of the same for marketing or advertising purposes. For these reasons, with communication sent via certified electronic mail on December 13, 2023, the complainant contacted the Company, requesting confirmation of whether or not there was an ongoing processing of personal data concerning him and in the affirmative case “to obtain access to such data, a copy of the same, and all the information provided in letters a) to h) of Article 15, paragraph 1, of Regulation (EU) 2016/679.”

From the documentation attached to the complaint, it emerged that the Company had responded to the request on March 18, 2024, stating that it had received “authorization from the supplier” and providing an email address belonging to the latter for the exercise of the right to erasure. The supplier in question was “Company XX, based in XX” and was reported as “dissolved via compulsory strike-off.”

1.2. The request for information made by the Authority

The Office, having examined the circumstances reported in the complaint and all the documentation attached, requested Thermogen to provide its observations regarding what had occurred and to communicate whether it intended to comply with the requests of the complainant (cf. Prot. n. 41327 of April 3, 2024).

In a note dated April 22, 2024 (cf. Prot. n. 50204 of April 23, 2024), the Company stated that it had received authorization to contact the mobile user registered to the complainant from Company XX, having its registered office in XX, attaching documentation containing the personal and contact details of the complainant, as well as the “date of issuance of the authorization from the aforementioned supplier: 12/01/2023 and the date of the end of the authorization: 03/01/2024.”

The complainant did not exercise the right to submit further observations.

1.3. Contestation of violations

The Office, at the conclusion of the investigation, adopted the aforementioned act of contestation n. 67283/24 in which, first of all, it was observed that Thermogen, which in this case assumed the role of data controller, had not responded to the request for the exercise of rights by the complainant within the terms and in the manner provided by law. In this regard, it was highlighted that the Company had responded to the complainant late, providing documentation in English and the email address of a foreign company for

the exercise of the right to erasure. In the opinion of the Office, this behavior violated, on one hand, the provisions of the Regulation regarding the rights of the complainant, and on the other hand, appeared contrary to the obligations imposed on the controller by virtue of the so-called accountability principle.

In the act of contestation, it was also noted that from the content of the responses provided, it seemed to emerge also the violation of the Regulation regarding the failure and/or incorrect identification of the roles and responsibilities of the parties involved in the operations of processing personal data, with a resulting in incorrect attribution of obligations and tasks that arise from it.

Finally, the Office noted that from the documentation on file, the promotional call subject to complaint appeared to have been made in the absence of an appropriate legal basis and prior provision of information on the processing of personal data, as well as using a numbering not registered with the Register of Communication Operators (hereinafter also "ROC").

The Office, therefore, contested Thermogen for the violation of Articles 5, 6, 7, 12, 13, 14, 15, 17, 24, and 28 of the Regulation, as well as Article 130 of the Code, for having violated the current provisions regarding the exercise of the rights of the data subjects and having carried out the aforementioned personal data processing in violation of the principles of lawfulness, transparency, and accountability, in the absence of appropriate information and without having obtained the required consent from the data subject.

2. FAILURE TO EXERCISE THE RIGHT OF DEFENSE BY THE DATA CONTROLLER

The party did not submit defensive writings, nor did it request to be heard by the Authority, pursuant to the provisions of Article 166, paragraph 6, of the Code and Article 13 of the internal regulation of the Guarantor No. 1/2019 (available for consultation on the website www.gpdp.it, doc web No. 9107633).

3. AUTHORITY'S EVALUATIONS

3.1 Preliminary Issues

It must first be reiterated that the data controller did not intend to exercise the right of defense by availing itself of the faculties provided for by Article 166, paragraph 6, of the Code and Article 13 of the internal regulation of the Guarantor No. 1/2019, despite the formal notification of the initiation of the procedure via certified electronic mail, evidenced by the acceptance and delivery receipts.

In this regard, Article 7, paragraph 1, of the internal regulation of the Guarantor No. 1/2019 states that "For the needs of certainty and speed in the handling of affairs, communications to the Guarantor concerning the same are preferably made via the online services available on the website or via certified electronic mail (PEC). Where possible, communications are made by the department, service, or other organizational unit taking into account the indications provided by the data subjects for notifications and communications with the Guarantor, or, in cases and forms provided for by current provisions, at the certified electronic mail (PEC) address resulting from public lists or otherwise accessible to public administrations."

Moreover, the current regulatory framework does not seem to allow for alternatives, considering that pursuant to Article 3 bis, paragraph 1 of Legislative Decree No. 82/2005 (Digital Administration Code, hereinafter also CAD), entities required to register in the business register are obliged to have a digital domicile and pursuant to the subsequent Article 5 bis "The submission of requests, declarations, data, and the exchange of information and documents, also for statistical purposes, between businesses and public administrations takes place exclusively using information and communication technologies. With the same modalities, public administrations adopt and communicate administrative acts and measures towards businesses."

In this sense, recent jurisprudence has also expressed itself, see Cons. Stato, Sez. VI, 06/06/2023, No. 5534 establishing that "PEC is now an ordinary (and exclusive) means for communications

between P.A. and businesses (Articles 5-bis and 48 of the Digital Administration Code - Legislative Decree No. 82 of 2005). The D.P.C.M. of July 22, 2011, containing the "Communications with IT tools between businesses and public administrations" and adopted in implementation of the aforementioned Article 5-bis, paragraph 2, CAD, provides, moreover, in its Article 3, that, starting from July 1, 2013, "public administrations may not accept or carry out communications in paper form" (paragraph 1) and that "in all cases where a different method of telematic communication is not provided, communications take place using certified electronic mail," pursuant to Articles 48 and 65, paragraph 1, letter c-bis, CAD (paragraph 2)."

On this point, Articles 6 and 6 bis of the CAD are also recalled, which specifically regarding businesses, provide that communications via digital domiciles are made to the addresses entered in the National Index of Digital Domiciles (hereinafter also "INI-PEC"), which is created from the lists of PEC addresses established at the business register and professional orders or colleges.

In the case at hand, the communication of the initiation of the procedure was sent to the PEC address of the data controller resulting from the chamber of commerce registration and present in the INI-PEC. Furthermore, the same certified electronic mail address was also used by the Company in previous communications with the Authority.

It follows that it must be considered that both the legal knowledge of the act in question and the integrity of the adversarial process have been fully realized.

3.2 Merits Issues

Regarding the merits issues, it is noted that, concerning the processing subject to complaint, Thermogen assumes the role of data controller pursuant to Article 4, point 7 of the Regulation (cf. "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data; when the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific criteria applicable...").

****Translation of Legal Document Text:****

"to its designation may be established by the law of the Union or of the Member States"), this also considering the circumstance that the promotional activity was carried out precisely on its behalf and was aimed at concluding a contract for a fee in its favor. Therefore, the same Company is directly accountable for both the obligations imposed by the regulations on personal data protection and the liability for the violations detected. Nevertheless, from the content of the statements received and the conduct exhibited towards the Authority, a picture emerges of not fully assimilating all the burdens and obligations that fall on the data controller in the field of personal data protection, as interpreted also in light of the principle of so-called accountability. In this regard, it is recalled that pursuant to Articles 5, paragraph 2, and 24 of the Regulation, the controller is responsible for compliance with the principles of lawfulness, fairness, and transparency of processing and is the subject burdened with the obligation to prove compliance.

In fact, according to Recital No. 74, "It is appropriate to establish the general responsibility of the data controller for any processing of personal data that the latter has carried out directly or that others have carried out on its behalf. In particular, the data controller should be required to implement appropriate and effective measures and be able to demonstrate compliance of processing activities with this regulation, including the effectiveness of the measures (...)."

In the case at hand, the violation of the obligations incumbent on the data controller emerges primarily from the management methods of the requests for the exercise of the rights of the data subjects, which appeared contrary to the letter and spirit of the current regulations under a dual order of aspects. On one hand, in fact, the controller responded to the request of the data subject well beyond the deadline set by Article 12 of the Regulation, without justifying the reasons for the delay and without availing itself of the extension option provided therein. On the other hand, the response provided to the data subject appears at first glance inadequate to satisfy their requests, since the Company limited itself to attaching a screenshot in English regarding the alleged acquisition of consent and to providing the email address of another subject - not established in the European Union - for the purpose of

exercising the right to erasure.

However, from that screenshot, it was not possible to understand either the nature of the alleged consents granted to the data subject or the role of the various parties involved in the processing operations carried out in the name and on behalf of Thermogen. Such conduct is entirely contrary to the provisions of Article 12 of the Regulation in that it requires the data controller to provide the data subject with all communications referred to in Articles 15 to 22 relating to processing, in a concise, transparent, intelligible, and easily accessible form, using simple and clear language.

Additionally, the late and terse response from the Company contradicts the aforementioned provision also in that it stipulates that the data controller must facilitate the exercise of the rights of the data subject and cannot refuse to satisfy such requests, unless it demonstrates that it is unable to identify the data subject. It is recalled in this regard that according to what is expressed in Recital No. 59, "It is appropriate to provide methods aimed at facilitating the exercise, by the data subject, of the rights under this regulation, including mechanisms to request and, where appropriate, obtain free of charge, in particular access to data, their rectification and erasure, and to exercise the right to object. The data controller should also provide means for submitting requests electronically, particularly where personal data are processed by electronic means. The data controller should be required to respond to the requests of the data subject without undue delay and at the latest within one month and to justify its possible intention not to comply with such requests."

Moreover, from the constant and repeated reference exclusively to the data controller contained in Articles 15-22 of the Regulation, it emerges that requests on the subject must be addressed precisely to the data controller and that this subject bears the obligation and responsibility to satisfy them. This principle can also be inferred a contrario from Article 15 of the Garante Regulation No. 1/2019 "concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante for the protection of personal data"; this provision, regarding the exercise of rights, stipulates that the complaint must be accompanied by a copy of the request addressed to the data controller and that if the applicant has not previously exercised the rights referred to in Articles 15 to 22 of the Regulation "with a request addressed to the data controller, if the complaint does not reveal specific and justified reasons justifying the failure to do so, the department, service, or other organizational unit to which the complaint is assigned invites, within forty-five days from the date of receipt of the complaint, the applicant to contact the data controller."

More generally, the responses provided by the controller reveal the failure and/or incorrectness...

****Identification of Roles and Responsibilities of the Subjects Involved in Personal Data Processing Operations, with Consequent Non-Compliance with the Obligations and Duties Arising Therefrom.****

The Company, in fact, has not provided any clarification regarding the subjective role of the operators involved in the processing operations that are the subject of the complaint and has shown itself to be unaware of the obligations arising from Article 28 of the Regulation in relation to the personal data processing activities carried out by its suppliers and business partners (so-called culpa in eligendo and culpa in vigilando).

Thermogen, in fact, both in the response provided to the data subject and in that addressed to the Authority, has limited itself to making exclusive reference to XX, a UK company that had long been dissolved, and has communicated nothing regarding the possible return, deletion, or anonymization of the data processed by this supplier on behalf of the Company.

On the other hand, the telemarketing and teleselling activities carried out on behalf of Thermogen also appear to have been conducted in the absence of an appropriate legal basis and therefore in violation of Articles 6 and 7 of the Regulation and Article 130 of the Code, further confirming the absence of any selection and supervision over the partners.

Furthermore, it is reiterated that from the documentation submitted, it is not possible to analytically reconstruct what types of consent the data subject has provided, nor the identity of the person responsible for the collection; on the contrary, there is a generic reference to XX as the "owner" of an

online marketing campaign and to consents collected in relation to "Telephone/ADSL/Security system" services, which have nothing to do with boiler maintenance.

Additionally, the fact that the call subject to the complaint was made from a number not registered with the ROC confirms that the processing subject to the complaint was carried out in violation of current regulations and using subjects who did not possess adequate competencies in the field of personal data protection.

Finally, from the statements made by the complainant regarding the ignorance of the transfer of their personal data abroad and the lack of consent for processing by Thermogen (statements that the Company has not sought to refute), it appears proven that there has been a violation of current regulations concerning the conduct of telemarketing activities in the absence of an appropriate legal basis and without prior provision of information to the data subject (see complaint document "(...) Having never had any relationship with the aforementioned Company nor having ever provided the same Company with my personal data nor granted consent for their processing for marketing or advertising purposes. (...) However, it does not appear that the undersigned has ever provided personal data or authorized the processing of the same to the non-EU company indicated by Thermogen.").

It must therefore be definitively confirmed that Thermogen is responsible for all the alleged violations.

****4. CONCLUSIONS****

Based on the above, Thermogen's responsibility for the following violations is deemed established:

- a) Articles 5, paragraph 2, 12, 15, 17, and 24 of the Regulation for having violated the current provisions regarding the exercise of the rights of data subjects;
- b) Articles 5, paragraph 2, 24, and 28 of the Regulation for carrying out personal data processing in the absence of prior identification by the data controller of the subjective roles and in violation of the duties imposed on the same data controller in relation to the processing activities carried out on their behalf (so-called culpa in eligendo and culpa in vigilando);
- c) Articles 5, 6, 7, 12, 13, and 24 of the Regulation, as well as Article 130 of the Code, for having carried out the above-described personal data processing in violation of the principles of lawfulness, transparency, and accountability, in the absence of prior information and an appropriate legal basis;

Having established the unlawfulness of the Company's conduct concerning the processing under examination, it is necessary to:

- impose on Thermogen, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to bring its personal data processing into compliance with current regulations, with particular reference to the identification of the subjective roles of the subjects involved in the processing activities and the management of requests for the exercise of rights by data subjects;
- impose on Thermogen, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to bring its personal data processing into compliance with current regulations, with particular reference to conducting telemarketing activities only in the presence of an appropriate legal basis and the provision of prior information pursuant to Articles 13 and 14 of the Regulation;
- impose on Thermogen, pursuant to Article 58, paragraph 2, letter f) of the Regulation, a prohibition on any further processing of the complainant's data;
- impose on Thermogen, pursuant to Article 58, paragraph 2, letter g) of the Regulation, to promptly delete the complainant's data;
- adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Thermogen of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation.

****5. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY**

SANCTION**

The violations indicated above necessitate the adoption of...

an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Thermogen of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to € 20,000,000.00 or, for companies, up to 4% of the annual worldwide turnover of the previous financial year, if higher);

For the determination of the maximum statutory amount of the pecuniary sanction, it is therefore necessary to refer to Thermogen's turnover, as derived from the latest available financial statement (2022) in accordance with the previous measures adopted by the Authority, and thus this maximum statutory amount is determined, in the case at hand, to be € 20,000,000.00.

For the determination of the amount of the sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation. In the case at hand, the following are relevant:

1) the severity of the violations (Article 83, paragraph 2, letter a) of the Regulation), taking into account the subject matter and purposes of the data processed, related to the overall phenomenon of telemarketing, regarding which the Authority has adopted, particularly in the last five years, numerous measures that have thoroughly examined the multiple elements of criticality providing the holders with numerous indications to adapt the processing to the current regulations and to mitigate the impact of nuisance calls on the affected parties;

2) as a mitigating factor, the number of individuals affected by the violations (Article 83, paragraph 2, letter a) of the Regulation) since, although these could potentially cause harm to other parties, in practice, and based on what has been ascertained, the processing resulted in the making of only one unwanted call to the complainant;

3) as a mitigating factor, the circumstance that the Company has not previously been the recipient of a corrective and sanctioning measure from the Authority (Article 83, paragraph 2, letter e) of the Regulation);

4) as an aggravating factor, the overall conduct of the Company and the degree of cooperation with the Authority, particularly with reference to the circumstance that Thermogen, following the request – with an invitation to comply – pursuant to Article 157 of the Code, limited itself to reiterating what had already been communicated to the complainant during the preliminary inquiry and that following the formal notification of the initiation of the procedure pursuant to Article 166 of the Code, it did not even intend to clarify its position by submitting defensive writings or requesting to be heard by the Authority (Article 83, paragraph 2, letter f) of the Regulation).

Based on the overall elements indicated above, and the principles of effectiveness, proportionality, and deterrence provided for by Article 83, paragraph 1, of the Regulation, and taking into account the necessary balancing between the rights of the affected parties and the freedom of enterprise, also in order to limit the economic impact of the sanction on the organizational and functional needs of the Company, it is deemed that an administrative sanction of payment of an amount of € 10,000.00 (ten thousand/00), equal to 0.05% of the maximum statutory sanction, should be applied to Thermogen.

In the case at hand, it is also deemed that the accessory sanction of publication on the Authority's website of this injunction order, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Authority's Regulation No. 1/2019, should be applied, considering the particular severity of the violations assessed under a dual order of observations.

On one hand, in fact, in the case at hand, the erroneous qualification of the subjective roles and more generally of the obligations arising from such qualifications is particularly relevant, to be considered in light of the most basic principles of any corporate privacy framework, also in light of the fact that several years have now passed since the entry into force of the Regulation.

On the other hand, the failure to comply with the specific obligations in the field of telemarketing is alarming when considered within the current socio-historical context related to the energy sector,

characterized by the transition to the free market and the intensification of initiatives attributable to the field of aggressive telemarketing, with a consequent increase in attention from users and the Authority. Finally, the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

a) imposes on Thermogen, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to align the processing of personal data with the current regulations, with particular reference to:

- the identification of the subjective roles of the subjects involved in the processing activities and the management of the requests for the exercise of rights by the affected parties;
- the carrying out of telemarketing activities only in the presence of an appropriate legal basis and the provision of prior information pursuant to Articles 13 and 14 of the Regulation;

b) imposes on Thermogen, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the complainant's data;

c) imposes on Thermogen, pursuant to Article 58, paragraph 2, letter g) of the Regulation, to promptly delete the complainant's data;

d) orders Thermogen, pursuant to Article 157 of the Code, to communicate to the Authority, within the term of

****thirty days from the notification of this provision, the initiatives undertaken in order to implement the measures imposed in the previous points; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation,****

****ORDERS****

to Thermogen S.r.l., represented by its legal representative pro tempore, with registered office in Milan (MI), Viale Abruzzi n. 94, VAT number 09968640962, to pay the sum of euro 10,000.00 (ten thousand/00) as an administrative pecuniary sanction for the violations indicated in the reasoning, stating that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by complying with the imposed prescriptions and paying, within thirty days, an amount equal to half of the imposed sanction.

****ORDERS****

the aforementioned Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of euro 10,000.00 (ten thousand/00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law No. 689/1981.

****DISPOSES****

a) the publication of this provision, pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, as well as the application of the accessory sanction of publication on the Garante's website of this injunction order, as provided for by Articles 166, paragraph 7 of the Code and 16 of the Garante's Regulation No. 1/2019;

b) the annotation of this provision in the internal register of the Authority - as provided for by Article 57, paragraph 1, letter u), of the Regulation, as well as by Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante - relating to the violations and measures adopted in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with an application submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the interested party, within

thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, November 13, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei